

No. 23-13396

**IN THE UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

AMERICAN SECURITIES ASSOCIATION and CITADEL SECURITIES LLC,
Petitioners,

v.

UNITED STATES SECURITIES AND EXCHANGE COMMISSION,
Respondent.

ON PETITION FOR REVIEW OF SEPTEMBER 6, 2023 ORDER OF THE
U.S. SECURITIES AND EXCHANGE COMMISSION

**INTERVENOR-APPLICANTS
THE NASDAQ STOCK MARKET LLC, NASDAQ BX, INC.,
NASDAQ GEMX, LLC, NASDAQ ISE, LLC, NASDAQ MRX,
LLC, AND NASDAQ PHLX LLC'S CERTIFICATE OF
INTERESTED PERSONS**

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Nasdaq Stock Market LLC, Nasdaq BX,
Inc., Nasdaq GEMX, LLC, Nasdaq ISE,
LLC, Nasdaq MRX, LLC, and Nasdaq
PHLX LLC*

[†] *Application for admission to the Eleventh Circuit pending*

U.S. COURT OF APPEALS FOR THE ELEVENTH CIRCUIT

**CERTIFICATE OF INTERESTED PERSONS
AND CORPORATE DISCLOSURE STATEMENT (CIP)**

Pursuant to Federal Rule of Appellate Procedure 26.1 and Eleventh Circuit Rule 26.1-1, Intervenor-Applicants certify that the following is a complete list of trial judges, attorneys, persons, associations of persons, firms, partnerships, or corporations that have an interest in the outcome of this appeal, including subsidiaries, conglomerates, affiliates, parent corporations, any publicly held corporation that owns 10% or more of the party's stock, and other identifiable legal entities related to a party:

Borse Dubai Limited, owner of more than 10% of Nasdaq, Inc.'s shares

International Securities Exchange Holdings, Inc., sole LLC member of Nasdaq GEMX LLC, Nasdaq ISE LLC, and Nasdaq MRX LLC

Investor AB, owner of more than 10% of Nasdaq, Inc.'s shares

Kastenberg, Stephen J., Ballard Spahr LLP, counsel for Intervenor-Applicants

Katsiff, Timothy D., Ballard Spahr LLP, counsel for Intervenor-Applicants

Lantieri, Paul, Ballard Spahr LLP, counsel for Intervenor-Applicants

Nasdaq, Inc. (NDAQ), sole owner of LLC interest in The Nasdaq Stock Market LLC and Nasdaq PHLX LLC and parent company of Nasdaq BX, Inc.

Nasdaq BX, Inc., Intervenor-Applicant

Nasdaq GEMX, LLC, Intervenor-Applicant

Nasdaq ISE, LLC, Intervenor-Applicant

Nasdaq MRX, LLC, Intervenor-Applicant

Nasdaq PHLX LLC, Intervenor-Applicant

The Nasdaq Stock Market LLC, Intervenor-Applicant

Thoma Bravo UGP, LLC, owner of more than 10% of Nasdaq, Inc.'s shares.

No publicly-traded company or corporation, other than those identified above or in the certificate of interested persons filed by Petitioners on October 17, 2023, has an interest in the outcome of this case. Intervenor-Applicants will file an amended certificate of interested persons should they become aware of a change in interests that would affect the disclosures as required by Federal Rule of Appellate Procedure 26.1 and Eleventh Circuit Rule 26.1-4.

Date: November 14, 2023

/s/ Paul Lantieri III

Paul Lantieri III

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CERTIFICATE OF SERVICE

I hereby certify that on November 14, 2023, I electronically filed the foregoing with the United States Court of Appeals for the Eleventh Circuit through the Court's CM/ECF system. Parties represented by registered CM/ECF users will be served by the CM/ECF system.

/s/ Paul Lantieri III

Paul Lantieri III